

FIRST ENDORSEMENT

Acting Executive Director Matthew Kadushin, Civilian Complaint Review Board to Deputy Commissioner Amy J. Litwin, Department Advocate's Office, February 21, 2023. Contents noted. Recommend approval of the negotiated plea agreement in DADS No. 2021-24041 against Police Officer Angel Ogando, Tax Registry No. 952065. The case was conferenced on February 7, 2023, before Assistant Deputy Commissioner of Trials Jeff Adler, who approved the negotiated penalty of Command Discipline Schedule (B), forfeiture of SEVEN (7) vacation days.

Matthew Kadushin

Acting Executive Director,
Matthew Kadushin
New York City Civilian Complaint Review Board



DISPOSITION OF CHARGES
PD 468-142(Rev. 8-89)-2

CASE NO.
2021-24041

BOOK & PAGE NO.
Page 1 of 1

PERSONNEL ORDER NO.

RANK/TITLE POM	SURNAME, OGANDO	FIRST ANGEL	M.I. R	COMMAND 001 PRECINCT
SHIELD NO. 17119	TAX REGISTRY NO. 952065	SOCIAL SECURITY NO.	DATE APPOINTED 01/09/2012	
RANK/NAME OF COMPLAINANT				COMMAND
DATE OF CHARGES		DATE TRIAL COMMENCED		DATE TRIAL CONCLUDED

TRIAL COMMISSIONER

SPECIFICATION	DISPOSITION	RECOMMENDED PENALTY PLEA [X] TRIAL []
1. Police Officer Angel Ogando, on or about November 25, 2019, at approximately 1400, while assigned to 001 PCT and on duty, in the vicinity of 50 Broadway, New York County, made remarks to § 87(2)(b) based upon the gender of § 87(2)(b) by stating in sum and substance "...don't be a little girl."	DISMISSED	B - COMMAND DISCIPLINE .00 - It is recommended that the Charges and Specifications be dismissed and that the matter be remanded to the Respondents command for imposition of a Schedule B Command Discipline with the forfeiture of the amount of vacation days as indicated. VACATION DAYS 7.00 - It is recommended that the Respondent forfeit the amount of vacation days as indicated.

Edward A. Cab 05/10/23
FIRST DEPUTY COMMISSIONER DATE

POLICE COMMISSIONER'S APPROVAL

☐ Approved

☒ Disapproved

☐ Other Action (Describe)

Edward A. Cab 9/11/23
POLICE COMMISSIONER DATE



POLICE DEPARTMENT

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th floor
New York, NY 10007

September 1, 2023

Re: CCRB Case No. 201910507 (Incident Date: November 25, 2019) involving Police Officer Angel Ogando, Tax No. 952065 (DADS No. 2021-24041)

Dear Mr. Darche:

The Police Commissioner has reviewed the Civilian Complaint Review Board's (CCRB) recommended penalty regarding the substantiated allegations against Police Officer Angel Ogando and determined that the actions of Police Officer Ogando do not warrant the imposition of the proposed penalty.

Police Officer Ogando responded to a 911 call from a job program facility for parolees, where an individual was potentially an emotionally disturbed person requiring medical attention. Upon arrival, Police Officer Ogando was notified by the center's social worker that an individual had made several threatening statements against his child and child's mother. Thereafter, EMTs arrived and determined that the individual would be removed to a hospital. At no point during the lengthy encounter did the individual demonstrate a willingness to voluntarily comply and go to the hospital. In fact, Police Officer Ogando and other officers were required to bring him to the ground in order to handcuff him. Even approximately forty-five (45) minutes after the commencement of the encounter, the individual was still combative and refusing to cooperate. He also accused the officers of using force against him and causing injuries, allegations that were later unfounded or exonerated by CCRB. When he accused the officers of slamming his head against a wall causing bruises, Police Officer Ogando gratuitously responded, "what bruises? Don't be a little girl." While it was discourteous and inappropriate for Police Ogando to respond in this manner, the comment appeared to be made out of frustration, as § 87(2)(b) continued to escalate the situation.

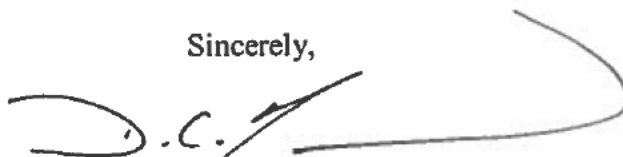
Despite the individual's actions, Police Officer Ogando had a duty to maintain a courteous, professional, and respectful demeanor throughout the encounter as he assisted EMS with their

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decision to transport the individual to the hospital. The Police Commissioner agrees with CCRB that the charges should be dismissed but intends to issue a Schedule "A" Command Discipline with the forfeiture of one (1) vacation day. Based on the totality of the circumstances, the comment was discourteous and inappropriate rather than offensive language based on the individual's actual gender identity.

Sincerely,

A handwritten signature in black ink, appearing to read "A.S. Marino", with a long horizontal flourish extending to the right.

Anthony S. Marino
Deputy Chief
Commanding Officer
Police Commissioner's Office

cc: Stuart London, Esq.



ERIC L. ADAMS
MAYOR

CIVILIAN COMPLAINT REVIEW BOARD
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NEW YORK, NEW YORK 10007 ♦ TELEPHONE (212) 912-7235
www.nyc.gov/ccrb



ARVA RICE
INTERIM CHAIR

September 7, 2023

The Honorable Edward A. Caban
Police Commissioner
New York City Police Department
One Police Plaza
New York, NY 10038

Re: CCRB v. Police Officer Angel Ogando
Disciplinary Case No.: 2021-24041

Dear Commissioner Caban:

I am writing in response to the letter from Deputy Chief Anthony S. Marino, dated September 1, 2023, informing the Civilian Complaint Review Board (hereinafter referred to as “CCRB”) of your intent to reject the proposed penalty in this matter and issue a Schedule “A” Command Discipline with the forfeiture of one (1) vacation day. Pursuant to Paragraph 6 of the April 2, 2012, Memorandum of Understanding between CCRB and the New York City Police Department (hereinafter referred to as the “MOU”), I am responding to Deputy Chief Marino’s notification.

Deputy Chief Marino states that you have determined that the actions of Police Officer Ogando do not warrant the imposition of the proposed penalty of a dismissal of the charges with the issuance of a Schedule “B” Command Discipline with the forfeiture of seven (7) vacation days, as you have deemed the statement made by Police Officer Ogando to be discourteous and inappropriate rather than offensive language based on the individual’s actual gender identity. CCRB disagrees with this determination for the following reasons:

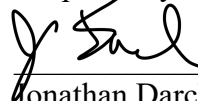
On November 25, 2019, at approximately 2:00 p.m., a number of officers from the 1st Precinct, including Police Officer Angel Ogando, responded to a call at 50 Broadway in Manhattan for a potentially Emotionally Disturbed Person named § 87(2)(b). EMT personnel also responded to the location. When EMT personnel informed § 87(2)(b) that he needed to go to the hospital, he refused. The officers forcibly restrained § 87(2)(b) and placed him on a gurney. During the interaction, § 87(2)(b) told the officers that he had several bruises, and PO Ogando

responded, “What bruises? Don’t be a little girl”. Officer Ogando acknowledged making this statement to § 87(2)(b) and offered no explanation or justification as to why he said this to § 87(2)(b).

PO Ogando stated to § 87(2)(b) “Don’t be a little girl,” after § 87(2)(b) complained of bruises on his body. That comment was disrespectful, served no law-enforcement purpose, and was based on § 87(2)(b) gender identity (i.e., the perceived lack of masculinity displayed by § 87(2)(b) complaint). It was made because § 87(2)(b) was a male complaining of an injury and was clearly intended to imply that § 87(2)(b) was not behaving in conformity with his gender but was, in fact, acting in a manner more appropriate of another gender. It is for this reason that the statement was not simply discourteous but was, in fact, offensive based upon § 87(2)(b) gender identity.

While it is recognized that the Police Commissioner is the final arbiter regarding disciplinary actions against members of service, based upon the foregoing, CCRB requests that the Police Commissioner accept the negotiated settlement and impose the proposed penalty of a dismissal of the charges with the issuance of a Schedule “B” Command Discipline with the forfeiture of seven (7) vacation days.

Respectfully submitted,



Jonathan Darche

Executive Director

NYC Civilian Complaint Review Board

Cc: Stuart London, Esq.